

Kenya legal and institutional framework

Day 2 · Session 2 | Both sectors | Shared resource

Keep this reference for the whole week — Thursday's session on the economics of bargaining with government, and the sector simulations that follow it, both assume the framework set out here.

The Three-Moment Lens

Use these three questions every time you read a legal or institutional fact in this pack. A fact that does not answer at least one of them is background, not a tool.

Moment	Detail
Preparing	Who is recognized to bargain; what the floor already guarantees; whether advice or approval must be sought first
Conducting	What you can rely on mid-table — the duty to bargain in good faith, an institution's real (limited) role, what is merely asserted
Concluding	What has to happen for an agreement to be valid, registered and enforceable, so it survives beyond the handshake

Kenya's Architecture for Collective Bargaining

Layer	Detail
Article 41, Constitution of Kenya	Every person has the right to fair labour practices. Workers have the rights specified in Article 41(2), including to form/join a union and to strike. Employers have distinct organizational rights under 41(3). Unions, employers' organizations and employers have a right to engage in collective bargaining under 41(5).
Labour Relations Act, 2007	Recognition, collective bargaining, registration of collective agreements and dispute-resolution procedures. Read the applicable provisions and any current orders for the actual case.
Employment Act, 2007	Minimum individual employment protections. More favourable collective terms may apply; statutory minimum protections cannot simply be bargained away.
Salaries and Remuneration Commission	Article 230 distinguishes setting/reviewing State officer remuneration from advising on other public officer remuneration. The Supreme Court held on 30 May 2025 that the latter advice is binding in the NHIF case. SRC is not itself the bargaining party.

Ask for the actual SRC advice, its scope and the applicable legal requirements. Do not assume that public-sector remuneration advice is optional. Check which institution can approve, fund and implement a proposed term.

International Labour Standards and Kenya's Position

Instrument	Kenya's position — checked 30 September 2026
C98 (1949): Right to Organise and Collective Bargaining	Ratified 13 January 1964; in force for Kenya. Article 6 addresses public servants engaged in administration of the State; sector and worker coverage require attention.
C87 (1948): Freedom of Association and Protection of the Right to Organise	Not ratified by Kenya. Freedom of association and effective recognition of collective bargaining remain fundamental principles under ILO membership.
C151 (1978): Labour Relations (Public Service)	Not ratified by Kenya; reference framework for public-service labour relations.
C154 (1981): Collective Bargaining	Not ratified by Kenya; reference framework for promotion of collective bargaining.
C190 (2019) and C192 (2025)	Not ratified by Kenya. Distinguish international guidance from a ratified treaty obligation and from independent domestic protections.

Ratification status matters. An unratified Convention can inform policy and practice; it is not a ratified treaty obligation. Fundamental principles and rights at work arise through ILO membership, including freedom of association and effective recognition of collective bargaining. Recommendations provide guidance and are not ratifiable treaties.

Standards Written for Your Two Sectors

Public health: C149 and R157	Higher education: HE1997; related ED1966
Kenya ratified C149 on 6 June 1990. It concerns nursing personnel, not every health occupation. Article 5 promotes nurses' participation and determination of terms and conditions preferably by negotiation with their organizations. R157 supplements it and is not a treaty.	The UNESCO Recommendation concerning the Status of Higher-Education Teaching Personnel (1997) is the principal sector reference here. The ILO/UNESCO Status of Teachers Recommendation (1966) covers teachers up to secondary level, including relevant technical/vocational settings. Both are Recommendations; CEART monitors their application.

Discussion Worksheet — Applying This to Your Sector

Complete this in your mixed group. Work from typical situations in your own sector — not a live case involving anyone in this room.

Question	Your group's answer
Preparing: what do we actually check or invoke before a negotiation — and what do we usually skip?	
Conducting: which part of this framework do we, or the other side, genuinely rely on — correctly or not?	
Concluding: where does the step from "agreed" to "binding and implemented" usually go wrong?	
Which single part of this framework do we most wish the other side understood better?	
One practical point per question, agreed as a group, and a spokesperson ready to share it in ninety seconds.	

From Agreement to Implementation

Labour Relations Act sections 59(5) and 60 provide for registration of a collective agreement in the Employment and Labour Relations Court. Submit within fourteen days of conclusion: the employer submits first; the union may submit if the employer fails. Registration and lawful implementation are separate checks.

Section 81 and the Fourth Schedule address essential services, including hospital services. Do not infer that every occupation in higher education is subject to identical restrictions. Examine the applicable statutory provisions and court orders for a real dispute.

Official References

Constitution of Kenya, Articles 41 and 230; Labour Relations Act, sections 59–60 and 81/Fourth Schedule; Supreme Court, SRC v NHIF Management Board, [2025] KESC 37 (30 May 2025); ILO NORMLEX Kenya ratifications and non-ratifications. Use the dashboard Standards tab for the full instruments and official sources.